

# HOUSE . . . . . No. 1216

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## The Commonwealth of Massachusetts

PRESENTED BY:

***Kristin E. Kassner***

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to insurance coverage of hearing aids.

PETITION OF:

| NAME:                              | DISTRICT/ADDRESS:     | DATE ADDED:      |
|------------------------------------|-----------------------|------------------|
| <i>Kristin E. Kassner</i>          | <i>2nd Essex</i>      | <i>1/16/2025</i> |
| <i>Donald R. Berthiaume, Jr.</i>   | <i>5th Worcester</i>  | <i>4/28/2025</i> |
| <i>Sean Garballey</i>              | <i>23rd Middlesex</i> | <i>2/13/2025</i> |
| <i>Colleen M. Garry</i>            | <i>36th Middlesex</i> | <i>1/25/2025</i> |
| <i>Christopher Hendricks</i>       | <i>11th Bristol</i>   | <i>1/23/2025</i> |
| <i>Vanna Howard</i>                | <i>17th Middlesex</i> | <i>8/16/2025</i> |
| <i>Patrick Joseph Kearney</i>      | <i>4th Plymouth</i>   | <i>2/3/2025</i>  |
| <i>David Henry Argosky LeBoeuf</i> | <i>17th Worcester</i> | <i>2/10/2025</i> |
| <i>Bud L. Williams</i>             | <i>11th Hampden</i>   | <i>1/22/2025</i> |

# HOUSE . . . . . No. 1216

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By Representative Kassner of Hamilton, a petition (accompanied by bill, House, No. 1216) of Kristin E. Kassner and others relative to insurance coverage of hearing aids. Financial Services.

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[SIMILAR MATTER FILED IN PREVIOUS SESSION  
SEE HOUSE, NO. 3554 OF 2023-2024.]

## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act relative to insurance coverage of hearing aids.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Section 23 of chapter 32A of the General Laws, as appearing in the 2022  
2   Official Edition, is hereby amended by striking out the second paragraph and inserting in place  
3   thereof the following paragraph:--

4                   The commission shall provide to any active or retired employee of the  
5   commonwealth and to any child, who is under 26 years of age or without regard to age if such  
6   child is incapable of self-sustaining employment due to disability, of any active or retired  
7   employee of the commonwealth and who is insured under the group insurance commission,  
8   coverage for hearing aids, as defined in section 196 of chapter 112. Coverage under this section  
9   shall include all related services prescribed by a health care professional or a licensed audiologist  
10   or hearing instrument specialist, as defined in said section 196 of said chapter 112, including the

11 initial hearing aid examination or evaluation, fitting and adjustments and supplies, including ear  
12 molds. Alternatively, if the insured is 18 years of age or older, no examination, evaluation or  
13 prescription shall be required for coverage for hearing aids. The benefits in this section shall not  
14 be subject to any greater deductible, coinsurance, copayments or out-of-pocket limits than other  
15 benefits provided by the insurer. Nothing in this section shall prohibit the commission from  
16 offering greater coverage for hearing aids than required by this section. This section shall also  
17 require coverage for such hearing aids under any non-group policy.

18 SECTION 2. Chapter 118E of the General Laws, as so appearing, is hereby amended by  
19 inserting after section 10Q the following section:-

20 Section 10R. The division and its contracted health insurers, health plans, health  
21 maintenance organizations, behavioral health management firms and third-party administrators  
22 under contract to a Medicaid managed care organization or primary care clinician plan shall  
23 provide coverage for hearing aids, as defined in section 196 of chapter 112. Coverage under this  
24 section shall include all related services prescribed by a health care professional or a licensed  
25 audiologist or hearing instrument specialist, as defined in said section 196 of said chapter 112,  
26 including the initial hearing aid examination or evaluation, fitting and adjustments and supplies,  
27 including ear molds. Alternatively, if the insured is 18 years of age or older, no examination,  
28 evaluation or prescription shall be required for coverage for hearing aids.

29 SECTION 3. Section 47X of chapter 175 of the General Laws, as so appearing is hereby  
30 amended by striking out the second paragraph and inserting in place thereof the following  
31 paragraph:-

Any policy of accident and sickness insurance as described in section 108 which provides hospital expense and surgical expense insurance and which is delivered, issued or subsequently renewed by agreement between the insurer and policyholder in the commonwealth; any blanket or general policy of insurance described in subdivision (A), (C) or (D) of section 110 that provides hospital expense and surgical expense insurance and that is delivered, issued or subsequently renewed by agreement between the insurer and the policyholder, within or without the commonwealth; or any employees' health and welfare fund that provides hospital expense and surgical expense benefits and that is delivered, issued or renewed to any person or group of people in the commonwealth, shall provide coverage for hearing aids, as defined in section 196 of chapter 112 to the insured and to any child of the insured who is under 26 years of age or without regard to age if such child is incapable of self-sustaining employment due to disability. Coverage under this section shall include all related services prescribed by a health care professional or a licensed audiologist or hearing instrument specialist, as defined in said section 196 of said chapter 112, including the initial hearing aid examination or evaluation, fitting and adjustments and supplies, including ear molds. Alternatively, if the insured is 18 years of age or older, no examination, evaluation or prescription shall be required for coverage for hearing aids. The benefits in this section shall not be subject to any greater deductible, coinsurance, copayments or out-of-pocket limits than any other benefits provided by the insurer. Nothing in this section shall prohibit an insurer from offering greater coverage for hearing aids than required by this section. This section shall also require coverage for hearing aids under any non-group policy.

SECTION 4. Section 8Y of chapter 176A of the General Laws, as so appearing is hereby amended by striking out the second paragraph and inserting in place thereof the following paragraph:-

Any contracts, except contracts providing supplemental coverage to Medicare or other governmental programs, between a subscriber and the corporation under an individual or group hospital service plan that is delivered, issued or renewed in the commonwealth shall provide coverage for hearing aids, as defined in section 196 of chapter 112 to all individual subscribers or members within the commonwealth and to all group members having a principal place of employment in the commonwealth and to any child of such person who is under 26 years of age or without regard to age if such child is incapable of self-sustaining employment due to disability. Coverage under this section shall include all related services prescribed by a health care professional or a licensed audiologist or hearing instrument specialist, as defined in said section 196 of said chapter 112, including the initial hearing aid examination or evaluation, fitting and adjustments and supplies, including ear molds. Alternatively, if the insured is 18 years of age or older, no examination, evaluation or prescription shall be required for coverage for hearing aids. The benefits in this section shall not be subject to any greater deductible, coinsurance, copayments or out-of-pocket limits than any other benefits provided by the insurer. Nothing in this section shall prohibit an insurer from offering greater coverage for hearing aids than required by this section. This section shall also require coverage for hearing aids under any non-group policy.

SECTION 5. Chapter 176B of the General Laws, as so appearing is hereby amended by striking out section 4EE and inserting in place thereof the following section:-

75           Section 4EE. Any subscription certificate under an individual or group medical service  
76 agreement, except certificates which provide supplemental coverage to Medicare or other  
77 governmental programs, that shall be delivered, issued or renewed within the commonwealth  
78 shall provide coverage for hearing aids, as defined in section 196 of chapter 112 to all individual  
79 subscribers or members within the commonwealth and to all group members having a principal  
80 place of employment in the commonwealth and to any child of such person who is under 26  
81 years of age or without regard to age if such child is incapable of self-sustaining employment due  
82 to disability. Coverage under this section shall include all related services prescribed by a health  
83 care professional or a licensed audiologist or hearing instrument specialist, as defined in said  
84 section 196 of said chapter 112, including the initial hearing aid examination or evaluation,  
85 fitting and adjustments and supplies, including ear molds. Alternatively, if the insured is 18 years  
86 of age or older, no examination, evaluation or prescription shall be required for coverage for  
87 hearing aids. The benefits in this section shall not be subject to any greater deductible,  
88 coinsurance, copayments or out-of-pocket limits than any other benefits provided by the insurer.  
89 Nothing in this section shall prohibit an insurer from offering greater coverage for hearing aids  
90 than required by this section. This section shall also require coverage for hearing aids under any  
91 non-group policy.

92           SECTION 6. Section 4N of chapter 176G of the General Laws, as so appearing, is hereby  
93 amended by striking out the second paragraph and inserting in place thereof the following  
94 paragraph:-

95           An individual or group health maintenance contract, except contracts providing  
96 supplemental coverage to Medicare or other governmental programs, shall provide coverage for  
97 hearing aids, as defined in section 196 of chapter 112 to the insured and to any child of the

98 insured who is under 26 years of age or without regard to age if such child is incapable of self-  
99 sustaining employment due to disability. Coverage under this section shall include all related  
100 services prescribed by a health care professional or a licensed audiologist or hearing instrument  
101 specialist, as defined in said section 196 of said chapter 112, including the initial hearing aid  
102 examination or evaluation, fitting and adjustments and supplies, including ear molds.  
103 Alternatively, if the insured is 18 years of age or older, no examination, evaluation or  
104 prescription shall be required for coverage for hearing aids. The benefits in this section shall not  
105 be subject to any greater deductible, coinsurance, copayments or out-of-pocket limits than any  
106 other benefits provided by the insurer. Nothing in this section shall prohibit an insurer from  
107 offering greater coverage for hearing aids than required by this section. This section shall also  
108 require coverage for hearing aids under any non-group policy.